

Warsaw, December 30, 2022

Decision

DKE.561.10.2022

Based on Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (consolidated text: Journal of Laws of 2022, item 2000) in connection with Articles 7 and 60 of the Act of May 10, 2018, on the protection of personal data (Journal of Laws of 2019, item 1781) and based on Article 58(1)(a) and (e), (2)(b) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of 04.05.2016, p. 1, as amended), after conducting administrative proceedings regarding the imposition of an administrative monetary penalty on the Housing Community M. based in W. at ul. (...), the President of the Personal Data Protection Office issues a reprimand to the Housing Community M. based in W. at ul. (...), for violating the provisions of Article 58(1)(a) and (e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, regarding the protection of natural persons in relation to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (OJ EU L 119 of 04.05.2016, p. 1, as amended), consisting of failing to provide access to personal data and information necessary for the President of the Personal Data Protection Office to perform his tasks in the proceedings under case reference DS.523.1488.2021.

Justification

Factual Background

In the proceedings conducted by the President of the Personal Data Protection Office (hereinafter: "President of UODO") under case reference DS.523.1488.2021, initiated based on the complaint of Mr. M. S., residing in W. at ul. (...) (hereinafter: "Complainant"), by letter dated September 23, 2021, the President of UODO summoned the Housing Community M. based in W. at ul. (...) (hereinafter: "Housing Community") to provide explanations regarding the matter, within 7 days from the date of delivery of the summons. The letter was delivered on September 28, 2021. The Housing Community did not respond to this summons.

By letter dated December 8, 2021, the President of UODO again summoned the Housing Community to provide explanations regarding case DS.523.1488.2021. The letter contained a warning that failure to provide a comprehensive response to the summons could result in the imposition of an administrative monetary penalty on the Housing Community based on Article 83(5)(e) of the GDPR. The Housing Community did not respond to this letter. The letter was not received by the Housing Community and was returned to the authority, which resulted in it being considered delivered by way of substitute delivery under Article 44 of the Act of June 14, 1960, the Code of Administrative Procedure – the shipment was twice notified and not collected within the deadline.

The aforementioned lack of response from the Housing Community to the summonses from the President of UODO to provide explanations in the proceedings under case reference DS.523.1488.2021 constituted grounds for determining a violation of Article 58(1)(a) and (e) of the GDPR, consisting of the Housing Community's failure to fulfill its obligation to provide the President of UODO with the information necessary to perform his tasks.

In light of the above, by letter dated April 22, 2022, the President of UODO initiated the present administrative proceedings regarding the imposition of an administrative monetary penalty on the Housing Community for violating Article 58(1)(a) and (e) of the GDPR, consisting of failing to provide access to personal data and information necessary for the President of UODO to perform his tasks. Additionally, the letter contained a warning that if the Housing Community provided written comprehensive explanations regarding case DS.523.1488.2021 within 7 days from the date of delivery of the information about the initiation of the proceedings and justified the previous lack of response to the summonses, this circumstance could mitigate the amount of the administrative monetary penalty imposed in these proceedings or could lead to the decision to refrain from imposing it. This letter, also

not received by the Housing Community, was returned to the authority, which resulted in it being considered delivered by way of substitute delivery under Article 44 of the Act of June 14, 1960, the Code of Administrative Procedure – the shipment was twice notified and not collected within the deadline.

By letter dated October 25, 2022, delivered on October 28, 2022, the President of UODO again informed the Housing Community that the present administrative proceedings regarding the imposition of an administrative monetary penalty on the Housing Community were ongoing. The letter contained all the warnings included in the previous letter informing about the initiation of the proceedings, as described in point 4 above.

On November 7, 2022, the President of UODO received a letter from the Housing Community, in which it was explained that the lack of response to the earlier letters from the President of UODO was not intentional. The Housing Community was aware of the ongoing proceedings DS.523.1488.2021. However, it was convinced that the explanations provided by the administrator of the Community in the proceedings were sufficient. Moreover, the Housing Community stated that it had not received the earlier letters from the President of UODO, indicating that no notifications were left regarding these letters, probably due to an error by the employee of P. S.A.

****Legal Justification****

The Housing Community ensured that if it received letters from the President of the Personal Data Protection Office (UODO), it would respond within the specified timeframe. After reviewing all the evidence gathered in the case, the President of the Personal Data Protection Office considered the following.

According to Article 57(1)(a) of the GDPR, the President of the UODO – as a supervisory authority within the meaning of Article 51 of the GDPR – monitors and enforces the application of this regulation within its territory. Within the scope of its competencies, the President of the UODO examines, among other things, complaints lodged by data subjects, conducts proceedings regarding these complaints to the appropriate extent, and informs the complainant of the progress and results of these proceedings within a reasonable timeframe (Article 57(1)(f)).

To enable the realization of such defined tasks, the President of the UODO is entitled to a number of powers specified in Article 58(1) of the GDPR, including the power to order the data controller and the processor to provide any information necessary for the performance of its tasks (Article 58(1)(a)) and the power to obtain access from the data controller and the processor to all personal data and any information necessary for the performance of its tasks (Article 58(1)(e)).

A violation of the provisions of Article 58(1)(a) and (e) of the GDPR, as mentioned above, consisting of the failure of the data controller or processor to provide access to data and information, is subject – in accordance with Article 83(5)(e) in fine of the GDPR – to an administrative fine of up to 20,000,000 EUR, and in the case of an enterprise – up to 4% of its total annual worldwide turnover from the previous financial year, with the higher amount applicable.

The President of the UODO has a number of corrective powers specified in Article 58(2), including the issuance of warnings to the data controller or processor in the event of violations of the GDPR by processing operations. Acting under Article 58(2)(b) of the GDPR, the President of the UODO may consider it justified to issue a warning regarding the identified violation of the provisions of Article 58(1)(a) and (e) of the GDPR. According to Recital 148 of the GDPR, to make the enforcement of the provisions of the regulation more effective, sanctions, including administrative fines, should be imposed for violations, in addition to or instead of appropriate measures imposed under this regulation by the supervisory authority. If the violation is minor, the monetary penalty may be replaced by a warning. However, due attention should be paid to the nature, gravity, and duration of the violation, whether the violation was intentional, the actions taken to minimize the damage, the degree of responsibility or any relevant prior violations, the manner in which the supervisory authority became aware of the violation, compliance with measures imposed on the data controller or processor, adherence to codes of conduct, and any other aggravating or mitigating factors.

Referring the above-mentioned provisions of the GDPR to the established facts in this case, it should be stated that the Housing Community, as the data controller, being a party to the proceedings under reference DS.523.1488.2021, violated Article 58(1)(a) and (e) of the GDPR by failing to provide the President of the UODO with access to the information necessary for the performance of his tasks by not responding to requests for clarification. However, during the course of the proceedings under reference DKE.561.10.2022 regarding the imposition of an administrative fine on the Housing Community, it responded to earlier requests from the President of the UODO and provided explanations regarding case DS.523.1488.2021, which allowed the President of the UODO to continue the proceedings. The factual circumstances indicate that the lack of a prior response from the Housing Community to the requests of the President of the UODO was the result of inadequate organization of the physical receipt of correspondence by the Housing Community. In the opinion of the President of the UODO, this does not relieve the Housing Community of responsibility for the violations identified in these proceedings; however, it allows for the conclusion that this violation was not intentional.

In light of the above, acting under Article 58(2)(b) of the GDPR, under which each supervisory authority has the power to issue a warning to the data controller or processor in the event of violations of the provisions of this regulation by processing operations, the President of the UODO considers it justified to issue a warning to the Housing Community regarding the identified violation of the provisions of Article 58(1)(a) and (e) of the GDPR.

The admissibility of replacing a monetary penalty with a warning is also justified by Recital 148 of the GDPR, which states that sanctions, including administrative fines, should be imposed "to make the enforcement of the provisions of this regulation more effective." The President of the UODO concluded that in this case, in light of the criteria specified in Article 83(2) of the GDPR, a warning would be sufficient.

However, it should be noted that in the event of a similar occurrence in the future, any warning issued by the President of the UODO to the Housing Community will be taken into account when assessing the grounds for any potential imposition of an administrative penalty, in accordance with the principles set out in Article 83(2) of the GDPR.

In this factual and legal state, the President of the Personal Data Protection Office has decided as stated in the operative part of this decision. The decision is final. The party has the right to file a complaint with the Provincial Administrative Court in Warsaw within 30 days from the date of its delivery, through the President of the Personal Data Protection Office (address: ul. Stawki 2, 00 - 193 Warsaw). A court fee of 200 PLN must be paid for the complaint, in accordance with Article 231 in connection with Article 233 of the Act of August 30, 2002 on Proceedings Before Administrative Courts (Journal of Laws of 2022, item 329, as amended). The party (natural person, legal person, or other organizational unit without legal personality) has the right to apply for legal aid, which includes exemption from court fees and the appointment of a lawyer, legal advisor, tax advisor, or patent attorney. Legal aid may be granted upon the party's application submitted before the initiation of proceedings or during the proceedings. The application is exempt from court fees.

Print article

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